

Court No. - 5

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

The petitioner has filed this writ petition without serving copy of the writ petition upon the counsel for respondent nos. 2,3 and 4.

Let copy of the writ petition be served upon the learned counsel for the respondent nos.2,3 and 4.

Put up as a fresh case before the appropriate Bench on **29.9.2020.**

Order Date :- 21.9.2020

sfa/

Court No. - 47

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

None is present on behalf of the petitioner even in the revised call to press the writ petition. However, Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent nos. 2, 3 and 4, is present.

Let the matter be placed on 13.10.2020 in the additional cause list.

Order Date :- 29.9.2020

SKT/-

Court No. - 46

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Learned counsel Shri Baleshwar Chaturvedi representing the Power Corporation is present. However, none has appeared on behalf of the petitioner to address the Court, even in the revised call.

Let the case be listed in the week commencing 17.11.2020 before the appropriate Bench.

Order Date :- 21.10.2020

M. Tariq

Court No. - 46

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

The case is adjourned at the request of the learned counsel for the petitioner to enable him to file the correct second copy of the writ petition.

Let the matter be placed in the week commencing 23rd November, 2020 before the appropriate Bench.

Order Date :- 17.11.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Learned counsel appearing on behalf of respondent nos. 3 and 4 prays for and is granted a week's time to obtain instructions.

Let the matter be placed on 02.12.2020 in the additional cause list.

Order Date :- 23.11.2020

SKT/-

Court No. - 46

Case :- WRIT - C No. - 14132 of 2020

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Arunesh Singh, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 to 4 and learned Standing Counsel for the State respondent no.1.

The present writ petition has been filed seeking following reliefs:

"(i) issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dues of electricity bill of Rs. 6,43,793/- received by the petitioner on 04.07.2020 sent by the office of the respondent no.3 from whatsapp no. 8057483558 on whatsapp no. 7017065680 by name of M/s Sri Bankey Bihari Stone Industries, Ghaskata Marg, Tantpur, Bloc Jagner, District Agra.

ii. issue a writ, order or direction in the nature of mandamus directing the respondent no.3 to reconnect the connection in unit of the petitioner by name of M/s Sri Bankey Bihari Stone Industries, Ghaskata Marg, Tantpur, Bloc Jagner, District Agra for running the business "stone cutting" within the stipulated time fixed by this Hon'ble Court."

Learned counsel for the petitioner is disputing the accuracy of electricity bill issued by the respondent no.3.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondents-Power Corporation on the basis of instructions submits that under the provisions of Clause 6.5 of the Electricity Supply Code, 2005, the petitioner has remedy to approach the appropriate authority.

Thus, we are not inclined to exercise our extraordinary jurisdiction under Article 226 of the Constitution of India at this stage.

Considering the facts and circumstances of the case, the petitioner is at liberty to approach the respondent no.3 by means of representation ventilating his grievance and the said authority shall consider and decide the same, in accordance with law.

Order Date :- 2.12.2020

Lbm/-